Eruv Chatzerot

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To permit carrying in a courtyard, community, or town on Shabbos, an eruv chatzerot is necessary. The eruv consists of 3 parts: 1) Walls or halachic partitions surrounding the desired area (Mechitzot), 2) Renting access from the non-Jewish residents (Sechirut Reshut), and 3) A communally owned deposit of food (Eruv Chatzerot). This article describes how to practically set up your very own Eruv Chatzerot in order to allow carrying on Shabbat in your area. For rabbis there is an obligation to set up an eruv in the community to allow to carry and avoid a violation of Shabbat.[1]

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Overview of Eruv Chatzerot

1. In order to carry from a house to a courtyard on Shabbat it is necessary to make an Eruv Chatzerot. An Eruv is a joint partnership of food from those who live in the courtyard to signify that they all live together where that food is placed. Shlomo Hamelech instituted this enactment because of a concern that people would come to carry in a reshut harabbim, public thoroughfare. Just like a courtyard is jointly owned and it is permitted to carry from a house there, so too people might think that it is permitted to carry from a house to the reshut harabbim. This institution of Eruv Chatzerot helps remind people that they may carry in the courtyard because they all live together in one place.[2]

2. The purpose of the jointly owned food is to indicate that it is as though everyone who owns a share of the food was living in one area.[3] In order to create a community eruv food of the size of 6 or 8 Kebaytzim suffices.[4] Traditionally people use a box of Matzahs since that lasts a very long time.[5]

Procedure of Making Communally Owned Food for Eruv Chatzerot

1. An eruv chatzerot must be made with bread[6] or pat haba bkisnin.[7]
2. The food for the eruv should be placed in one vessel, but if that vessel overflows it is fine to put in two vessels.[8]
3. The food should be given as a gift to the entire community with the following procedure:
    1. The box of matzahs should be handed to a Jewish adult to whom the giver is unrelated[9] in order that the recipient acquire it on behalf of the Jews living in the community, including those who will move into the community from that point until the next Pesach.[10]
    2. The recipient should raise the box of matzahs a Tefach.[11]
    3. After handing the box of matzahs to the recipient on behalf of the community, the giver who is creating the eruv should take the matzahs and recite the bracha of 'Asher Kideshanu B'mitzvotav V'tzivanu Al Mitzvat Eruv' is recited[12], however, this is only if one is certain that one absolutely needs an eruv chatzerot.
    4. Then he should stipulate that the box of matzah should serve as the eruv in order to permit carrying in that particular domain, with the following language: בהדין עירובא יהא שרי לנא לאפוקי ולעיולי מן הבתים לחצר ומן החצר לבתים ומבית לבית לכל ישראל הדרים בבתים שבחצר הזה.[13]
    5. It is necessary to repeat this process each pesach and should be recreated the Shabbat during Pesach.[14]
4. The food must be accessible on Shabbat to the Jewish people for whom the eruv serves.[15] According to Ashkenazim, it is common to place the eruv in the shul[16], however, according to Sephardim it should be placed in a person's house.[17]
    1. For example, in an apartment building it is should be known that the box of matzahs are stored in a certain apartment and when that person is away for shabbat, it should still be accessible such as by leaving the key with another tenant in the building.[18] Some poskim hold that if the building is inside of a communal eruv, which has communal food such as matzah, the building eruv can rely upon the communal food of the communal eruv.[19]
5. If the food is eaten in the middle of Shabbat, it is still permitted to carry for that Shabbat, but the food must be replaced for the next Shabbat.[20]

Restrictions even with an Eruv Chatzerot

1. Some achronim hold that even if there is an eruv still it is forbidden to carry from one chetzer to another chetzer unless there is a door between them. It would be permitted to carry from one chetzer to another through the street where they made an eruv. For example, if there are two backyards with a fence between them and no gate, according to this opinion it is forbidden to carry or throw something over the fence, even though there is an eruv. However, most poskim are lenient about this.[21]
2. It is forbidden to carry kelim that were in the house when Shabbat started to a karpef even if it is less than a beyt saatayim, even if there is an Eruv chatzerot.[22]
3. If there is an embassy it is forbidden to carry into that embassy kelim that were in one's house at the beginning of Shabbat even if there is an eruv.[23]

4. Many poskim hold that it is forbidden to carry into a non-Jew's house even if there is an eruv.[24]

Carrying without an Eruv Chatzerot

1. It is permitted to carry kelim from one chetzer to another chetzer even without an eruv chatzerot. The reason for eruv chatzerot is to allow carrying utensils of the house to the chetzer or from the chetzer to the house.[25]
2. If kelim of the house got into a chetzer in a permitted fashion or accidentally in a forbidden fashion, many poskim hold that it is permitted to then carry them in the chetzer, while others hold that it is forbidden. The lenient opinion holds that the primary gezerah was only about transferring from one domain to another but not within the chetzer. The stringent opinion views the chetzer like a reshut harabbim once there's no eruv, with respect to the kelim of the house.[26]
    1. Based on the above, if a person is in a place without an eruv and he wore his jacket to shul, can he take it off and carry it more than 4 amot in the shul? If the jacket was at his house when Shabbat started and he wasn't wearing it, it has the status of a kli ha'bayit. Once he wore it to shul, many poskim would permit him to carry it in shul since he's not moving it from chetzer to chetzer. However, some poskim would forbid this since the jacket is a kli ha'bayit and can't be moved more than 4 amot in the chetzer.[27]
3. Some poskim are very strict about this and forbid carrying a kli that in a permitted or forbidden way got into a house to move it more than 4 amot. Most poskim argue that this is permitted.[28]
    1. If someone's coat was in shul when Shabbat started (because he wore it there before Shabbat) and then he wears it home, according to the stringent view he may not carry the coat more than 4 amot in his house if there's no eruv. However, most poskim are lenient about this since the rabbis never made a gezera of eruv chatzerot within someone's private home.[29]

Carrying within a building

Apartment Buildings

1. If a person lives in an apartment building with other Jews, an eruv chatzerot is necessary in order to carry within the building on Shabbat.[30] Some say that if there is an eruv in town one doesn't need a specific eruv chatzerot for the building even if one doesn't hold of the eruv.[31]

Dorms

1. Some say that if students live in a dorm with other Jewish students and everyone eats together in the cafeteria, an eruv chatzerot isn't necessary in order to carry in the dorms on Shabbat.[32]

Hospitals

1. Some poskim are lenient not to require an eruv chatzerot in a hospital, but it is better to do so to satisfy all opinions. If someone on staff lives there permanently then there's no need for eruv if all of the patients would be there for less than 30 days. However, sometimes no one lives in the hospital or patients stay for more than

30 days an eruv should be necessary. The reason for the the poskim who are lenient is because the hospital could move patients from room to room.[33]

Hotels

1. If a person visits a hotel for a Shabbat, some say that an eruv chatzerot isn't necessary in order to carry in the hotel on Shabbat, while others require it.[34]

If They All Eat Together

1. If they all eat in the same place for all of their meals they don't need an eruv chatzerot, but if some eat in their own rooms for some of the meals they need an eruv chatzerot.[35]

If the Hotel Owner Lives at the Hotel

1. If the guests are there for 30 days or less and the hotel owner lives there, they don't need an eruv. If the hotel owner is a non-Jew or not religious Jew, they need an eruv chatzerot without a bracha and sechirut reshut.[36]
2. If guests are there for more than 30 days they need an eruv with a bracha. If the owner is not religious or not Jewish they need sechirut reshut as well.[37]
3. If the guest are there for more than 30 days, but he can switch them to another room. If the hotel owner lives there they don't need an eruv chatzerot. If the owner isn't religious or non-Jewish they need sechirut reshut and eruv chatzerot.[38]

Elaboration of Whether an Eruv Chatzerot is Necessary in a Hotel

Does a hotel need an eruv chatzerot?

1. As long as two Jews are staying in the hotel over Shabbat there is an institution of Eruv Chatzerot that needs to be addressed. There are two leniencies that everyone agrees are effective but are dependent on the case. The more general leniencies to permit all hotels are subject to major disputes and most poskim hold that these general leniencies are ineffective.
2. The leniencies everyone agrees with:
    1. If all of the hotel guests eat together the main meals on Shabbat in the same dining room they do not need an eruv since it is considered that they all live in the same room. However, this leniency, although undisputed, is only effective if all of the guests eat all of their meals in that room, but if even one guest or the mashgiach staying overnight eats a meal in another room they need an eruv. Additionally, if the guests eat in the same dining room but would prefer to eat in their private rooms, which is relevant if the guests aren't part of the same event and would prefer not to eat with strangers, an eruv is necessary.[39]
    2. If everyone in the hotel is going to eat from the same food for Shabbat, that food is in one room, and it is accessible when Shabbat starts, that food can count as the eruv.[40]
3. The general leniences and the disputes surrounding them:
    1. Since the hotel owner can move guests from room to room without their consent they aren't considered living permanently in one place.[41]
        1. This leniency assumes that the factor of matzuy lsalukey functions independently of the other factors of tosfot that the guests all need to use common areas for cooking together and that they live there for free. However, if it is necessary to have one or both of the other factors of tosfot

this leniency doesn't work. Magen Avraham, Taz, Nishmat Adam,[42] Eliyah Rabba,[43] and Chazon Ish[44] are all strict. Mishna Brurah[45] seems to be lenient based on this factor alone.[46]
    2. This leniency according to most poskim doesn't work unless the hotel owner or someone appointed in his stead lives in the hotel, which usually is not the case.[47]
    3. According to the poskim that this is effective it is true even if the hotel owner is a non-Jew.[48]
    4. Even if someone is lenient about one of these disputes, this approach doesn't work unless one is lenient on all of the disputes cited.
2. Since the hotel owner retains rights in every room to leave his property, such as the furniture of the room, it is considered as though the owner is living in the entire hotel and there isn't anyone else living there.[49]
    1. Most poskim hold that this leniency doesn't work unless the owner or someone appointed in his stead lives at the hotel.[50]
    2. This leniency is not effective if the owner is non-Jewish.[51]
    3. Most poskim hold that this leniency doesn't apply if the furniture was meant for the guests' benefit. The leniency of the gemara was only if the owner left his items in the room for storage.[52] Some poskim reject this distinction.[53]
3. Since the guests are staying for less than 30 days they are considered guests and wouldn't require an eruv chatzerot.[54]
    1. This leniency certainly doesn't apply unless the owner or someone else lives in the hotel permanently, which generally isn't the case.[55]
    2. This leniency doesn't apply if the hotel owner is non-Jewish.[56]
4. In summary, in general someone staying at a hotel does require an eruv chatzerot according to most poskim. There is a minority view that would exempt them in all cases.[57]

Sources

1. Rosh quoted in S"A, Kitzur Shulchan Aruch 94:1
2. Tur 366:1, Rambam Eruvin 1:4, Mishna Brurah 366:2
3. Gemara Eruvin 49a, Kitzur Shulchan Aruch 94:6
4. Kitzur Shulchan Aruch 94:8
5. Rama 368:5. Rav Hershel Schachter ("Eiruvei Chatzeiros," min 2-4) on yutorah.org explains that a box of matzah is traditionally used for the eruv chatzerot and it works even for Sephardim who would make mezonot since it can be hamotzei if eaten as a meal. Rav Hershel Schachter ("Eiruvei Chatzeiros," min 8-9) on yutorah.org states that one box of matzahs probably has 8 Kebaytzim but if you think that's not enough then have 2 boxes of matzah.
6. Eruvin 81a, Shulchan Aruch O.C. 366:7
7. Brachot 42a, Darkei Moshe 366:1 quoting Rabbenu Yerucham, Aruch Hashulchan 366:15. Shevet Halevi 11:103 wonders why the poskim by eruvin didn't codify this halacha. He answers that they didn't because it is obvious since even rice bread is acceptable for an eruv (Shulchan Aruch O.C. 366:7).
8. Shulchan Aruch O.C. 366:7
9. Mishna Eruvin 79b, Kitzur Shulchan Aruch 94:7
10. Tosfot Eruvin says that a guest who isn't living in a community for more than 30 days doesn't need to participate in the shituf eruv for the chatzerot.
11. Kitzur Shulchan Aruch 94:6
12. Kitzur Shulchan Aruch 94:6
13. Kitzur Shulchan Aruch 94:6
14. Kitzur Shulchan Aruch 94:11
15. Shulchan Aruch 394:2, Chaye Adam 72:9, Kitzur Shulchan Aruch 94:10
16. Rama 366:3, Kitzur Shulchan Aruch 94:24
17. Eruv KeHilchato (Rabbi Avraham Ades, p. 164)

18. Rav Hershel Schachter ("Eiruvei Chatzeiros," min 3-4) on yutorah.org
19. Or Letzion 2:23:13
20. Mishna Brurah 368:16
21. Magen Avraham 372:3 is strict based on Rashi that the leniency of eruv chatzerot doesn't allow going from one chetzer to another unless there is a way to make an eruv between name, namely there is a door between them. However, Even Haozer (to Magen Avraham 372:3), Tosefet Shabbat 372:6, Pri Megadim E"A 372:3, and Aruch Hashulchan 372:12 disagree. Once it is permitted to include all of the houses and chatzerot in the eruv, they're all joined together and it is completely permitted to carry from one to another. Mishna Brurah 372:27 and Netivot Shabbat 32:17 are lenient like Even Haozer unlike Magen Avraham.
22. Magen Avraham 372:1. Biur Halacha 372:1 s.v. oh writes that this question of Magen Avraham depends on a major dispute between the rishonim and only in an extenuating circumstance should one be lenient. Biur Halacha quotes Chemed Moshe who is lenient if there's an eruv. Chazon Ish 88:26 and Netivot Shabbat (ch. 12 fnt. 3) quote this Biur Halacha.
23. Netivot Shabbat (ch. 37 fnt. 93). The reason is that the communal sechirut reshut doesn't work to permit the embassy.
24. One reason for this is that the sechirut reshut today is effective according to most poskim for the streets but not private homes. Netivot Shabbat 37:27 notes this that even a sechirut reshut from the government for the streets, which helps for the eruv, doesn't allow carrying in a non-Jew's house on Shabbat. Fundamentally, this is based on Rama 391:1. Netivot Shabbat (ch. 37 fnt. 94) also raises the halachic possibility that even sechirut reshut and eruvin only permit carrying in Jewish homes and the streets but not the non-Jewish homes. He says he didn't see the poskim raise this issue.
25. Eruvin 89a, Shulchan Aruch O.C. 372:1
26. Biur Halacha (372:1 s.v. she'ma) notes that it is a dispute between the rishonim whether kelim that were originally in the house can be moved in the chetzer if brought there in a permitted or forbidden fashion. Rashi (Shabbat 130b) and Tosfot (Eruvin 91b) hold that it is permitted, while Rashba (Avodat Hakodesh 3:2:109) holds it is forbidden. Even Haozer, Bet Meir, and Rabbi Akiva Eiger all seem to be strict, while Shulchan Aruch Harav (372:1 and 388:1) and Chazon Ish 104:22 are lenient. Avnei Nezer OC 301:17 is strict and argues Tosfot agrees with Rashba. Biur Halacha doesn't resolve the question. Netivot Shabbat 26:11 also quotes this dispute and doesn't resolve it.
27. Rashi and Tosfot are lenient, while Rashba is strict. Shulchan Aruch Harav 372:1 and Chazon Ish are lenient, while Even Haozer, Bet Meir, Rabbi Akiva Eiger, and Avnei Nezer 301:17 are strict. Biur Halacha doesn't resolve this question.
28. Even Haozer holds that it is forbidden to carry a kli that came from a chetzer into the house more than 4 amot. Bet Meir argues that this is permitted since moving items inside a house was never included in the gezerah of chazal. Biur Halacha is lenient about this point. Netivot Shabbat 26:11 is also lenient.
29. Even Haozer would forbid this, but most poskim reject this stringency (Biur Halacha 372:1 s.v. she'ma).
30. Eruv KeHilchato (Rabbi Avraham Ades, p. 149)
31. Or Letzion 2:23:13
32. Avnei Yishfeh O.C. 5:73 holds that if all of the students eat together in the cafeteria there's no need for an eruv chatzerot. Rav Hershel Schachter ("Eiruvei Chatzeiros," min 35-40) says that Rav Soloveitchik held that the students in the dormitory in Yeshiva University should make an eruv chatzeirot, however, the general assumption is like Rav Moshe and there's no need for an eruv chatzeirot.
33. Netivot Shabbat 34:13 writes that it is possible that hospitals don't need an eruv because the staff could move patients from room to room.
34. Igrot Moshe 1:141 holds that utensils of the hotel owner or apartment building owner is considered tefisat yad so that those staying there are like his guests and don’t need an eruv chatzerot. Chazon Ish OC 92, Minchat Yitzchak 4:55:5, and Dvar Avraham 3:30 are strict. Minchat Yitzchak requires an eruv chatzerot for Jews staying in a hotel. Chazon Ish holds that any utensils that are lent out to the guests or renters aren’t considered tefisat yad of the owner. Rav Tzvi Goldberg on star.org and Rabbi Eisenstein's shiur on yutorah.org summarize the topic as well. Rav Hershel Schachter ("Eiruvei Chatzeiros," min 34-39) agrees with Rav Moshe since the hotel can leave heavy furniture in the rooms that indicates that really everyone is guests by the hotel owner and there's no need for an eruv chatzerot. Additionally, if all of the food for the hotel comes from the same kitchen there's no need for an eruv chatzerot.
35. Minchat Yitzchak (4:55 n. 5)

36. Minchat Yitzchak (4:55 n. 3)
37. Minchat Yitzchak (4:55 n. 1)
38. Minchat Yitzchak (4:55 n. 4)
39. Shulchan Aruch O.C. 370:4, Shemirat Shabbat Kehilchata 17:17, Orchot Shabbat 3:28:95
40. Shulchan Aruch O.C. 366:11, Shemirat Shabbat Kehilchata 17:17, Orchot Shabbat 3:28:95
41. Based on the third reason of Tosfot Eruvin 72a
42. 73:4
43. 370:8
44. OC 92
45. Biur Halacha 370:3. Chelkat Yakov 186 assumes that this is the understanding of the Biur Halacha, even though it is possible to read it otherwise. Eruvei Chatzerot 17:1 proves this from Mishna Brurah 382:7 and Shaar Hatziyon 6 and 55 as well as Biur Halacha 384:1.
46. Shulchan Aruch Harav 370:5 isn't clear. He is clear that it doesn't work for a sale or rental, but isn't clear if that is because they aren't matzuy l'salkinhu or automatically it doesn't work. Shulchan Aruch Harav 382:2 perhaps is a proof that it is about matzuy lsalkinhu. Biur Halacha 370:3 seems to understand Shulchan Aruch Harav in line with his approach that everything depends on matzuy l'salkinhu.
47. Eruvei Chatzerot 29:3
48. Eruvei Chatzerot siman 29 p. 495 s.v. vgabei
49. Shulchan Aruch O.C. 370:2
50. Chazon Ish 90:38, Eruvei Chatzerot 30:2:3:2, Betzel Hachachma 5:140-141, Netivot Shabbat 34:5
51. Chelkat Yakov 186
52. Dvar Avraham 3:30, Minchat Yitzchak 4:55, Chelkat Yakov 186, Chazon Ish 92, Shemirat Shabbat Kehilchata 17:17, Netivot Shabbat ch. 37 fnt. 59, and Eiruvei Chatzerot (by R Menachem Moscowitz) siman 30:3:2 p. 523 quoting Rav Elyashiv
53. Igrot Moshe 1:141, Maharshag 2:122
54. Trumat Hadeshen 76, Shulchan Aruch O.C. 370:8
55. Eruvin 65b, Rama 370:8, Darkei Moshe 382:5, Biur Halacha 370:8 s.v. osrim
56. Sht Harama 120, Magen Avraham 382:12, Pri Megadim, Shaar Hatziyon 370:36
57. Those who are strict to require an eruv chatzerot in a hotel unless they eat together or the food is stored in one place: Shemirat Shabbat Kehilchata 17:17, Orchot Shabbat 3:28:95, Betzel Hachachma 5:140-141, Minchat Yitzchak 5:44, Chachmat Lev siman 18 p. 410, Rav Yechezkel Roth in Emek Hateshuva 9:45, and Pri Gani v. 7 p. 45.
    - Those who are lenient in hotels in general: Chelkat Yakov 1:186 because of matzi mesalek ley.
    - Lev Aharon 1:31 is lenient because they eat together, matzuy lsalek, he wouldn't rent to guests so that they would asur on each other, they use things together like bathrooms kitchen, only have one exit to street, and tefisat yad. He’s lenient even if the owner isn't there. It is unclear if lenient without first reason.
    - Star-K quotes whether hotels need eruv chatzerot as a dispute between Rav Moshe and the Dvar Avraham whether an eruv chatzerot is necessary in a hotel.CRC applies Rav Moshe’s teshuva to hotels as well. Both Star-K and CRC do not raise the other issues which invalidate that leniency even according to Rav Moshe.

Category	Topic
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